

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                            |                           |                                                                                                                                                                                                                                  |
|---------------------------------------------------|------------------------------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Kim Mosolf                       | Team:<br>Team # 5                                          | CCRB Case #:<br>200202566 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 04/17/2002 8:25 PM | Location of Incident:<br>Morningside Park & W.110th Street | 18 Mo. SOL<br>10/17/2003  | Precinct:<br>26                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Fri, 04/19/2002 10:25 AM | CV Reported At:<br>CCRB                                    | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 04/19/2002 10:25 AM                                                                                                                                                                           |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Daniel Tilman   | 10060  | 926209 | 026 PCT |
| 2. SGT Christop Martin | 05609  | 910859 | 026 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Wilfredo Rosario   | 24824     | 919650 | 026 PCT  |
| 2. POM Richard Gazzano    | 18708     | 926871 | 026 PCT  |
| 3. POM Vincent Signoretti | 25399     | 927519 | 026 PCT  |
| 4. LT Raymond Merlotto    | 00000     | 893386 | 026 PCT  |

| Officer(s)              | Allegation                                                                                                                                                                                            | Investigator Recommendation |
|-------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Daniel Tilman   | Force: PO Daniel Tilman used physical force against § 87(2)(b)                                                                                                                                        | A . Exonerated              |
| B . SGT Christop Martin | Abuse of Authority: Sgt. Christopher Martin did not process § 87(2)(b) complaint regarding an officer.                                                                                                | B . Substantiated           |
| C . SGT Christop Martin | Other: Sgt. Christopher Martin intentionally made a false official statement when he said that he had no conversation with § 87(2)(b) regarding filing a civilian complaint against PO Daniel Tilman. | C . Other Misconduct        |

## Synopsis

On April 17, 2002 at approximately 8:25PM, § 87(2)(b) was the guest at a cookout in Morningside Park in Manhattan. PO Daniel Tilman and PO Wilfredo Rosario were patrolling the park and approached the group, informing them that such cookouts were illegal. A verbal exchange between § 87(2)(b) and PO Tilman escalated to a physical struggle during her arrest. She was taken back to the 26<sup>th</sup> Precinct station house where she was released with a summons for § 87(2)(b).

On her way out of the station house, § 87(2)(b) asked to file a complaint against PO Tilman was allegedly denied by Sgt. Christopher Martin.

§ 87(2)(g) it is recommended that Allegation A be exonerated.

§ 87(2)(g) it is recommended that Allegation B be substantiated. Allegation C is noted as other misconduct due to the intentional false official statement given by Sgt. Martin in regards to Allegation B.

## Summary of Complaint

§ 87(2)(b) age § 87(2)(b) filed her complaint with the CCRB on April 19, 2002, two days following the incident (Enc. 6a-b). She identified PO Tilman and stated that he “manhandled” her and threw her into the police van without warning, giving a general description of the context and outcome of the situation. She identified PO Tilman by name from the summons issued to her. § 87(2)(a) PHL § 18(6)

On April 22, 2002, § 87(2)(b) provided a statement over the phone that was more detailed than the original complaint § 87(2)(g). § 87(2)(b) was interviewed at the CCRB on May 1, 2002 (Enc. 8a-e). She stated that, on April 17, 2002, at 8:25PM, she was the guest at a cookout in Morningside Park. They were finishing up and the last round of food caught on fire, producing small and short-lived flames. § 87(2)(b) had put out the fire when she found out that two police officers, PO Daniel Tilman and PO Wilfredo Rosario, who had been patrolling the park, had asked one of the cookout participants to come over to their van. § 87(2)(b) did not know the specifics of this exchange. Another participant also went over to the van and returned, explaining that someone with identification needed to go talk to the police because she did not have any ID on her.

§ 87(2)(b) had identification and approached the van and the officers. She asked the officers if there was any kind of problem. One of them stated that people were not supposed to cookout in the park. § 87(2)(b) explained that she had not known this. She was aware of signs posted in Central Park forbidding cookouts, but had not seen any signs in Morningside Park. Before she could finish this sentence, PO Tilman yelled, “Relax!”

§ 87(2)(b) did not understand why he had yelled, as she had not been expressing anger, raising her voice, or speaking in any type of sarcastic manner. She figured that it was best that she simply remove herself from the situation, since she did not understand the officer’s apparent anger and she was not the person who organized the cookout. She stated, “OK, let me leave” and turned around to return to the cookout. § 87(2)(b) was later told by the individual in charge of the cookout that, after she had walked away, PO Tilman had asked about her and had been informed that she was not the individual throwing the cookout, but simply a guest.

A short while later, she returned to the area with the officers and police van because she was retrieving one of her sons, playing nearby. Most of the adults from the cookout were

standing near the van and PO Tilman was stating that they would all be getting tickets for \$55 and, as she approached, continued, "...because she [pointing to § 87(2)(b)] has an attitude." § 87(2)(b) asked, "How am I nasty?" PO Tilman then told her that she did not know how to talk to people. She told him that he did not know how to talk to people and just because he had a badge did not give him the right to disrespect people. PO Tilman asked § 87(2)(b) how old she was in a tone that § 87(2)(b) believed to be cynical. She replied, "Why, how old are you?" § 87(2)(b) stated that she probably should not have said this in a sarcastic manner, but was upset and clarified that she never cursed at the officer and never said anything worse than this statement. She never yelled at him or got close to him.

At this point, PO Tilman, who was standing approximately six feet from § 87(2)(b) rushed at her and grabbed her without warning. He grabbed her arms and she resisted, alarmed and confused. She did not understand if she was being arrested, but was frightened and struggled a bit with the officer. They struggled for approximately three to five minutes and § 87(2)(b) sustained several injuries § 87(2)(b) for which she was treated at § 87(2)(b) emergency room.

PO Tilman twisted her arm and slammed her into the van. She told the officer, "What are you doing? I have kids out here. Am I being arrested?" PO Tilman replied, "You're going in." § 87(2)(b) who was getting "loud" at this point, stated that she was not going anywhere and asked, "For what? Are you arresting me?" PO Tilman finally got her hands in the handcuffs and asked her if she had been drinking. § 87(2)(b) denied drinking and replied, "Sir, are you arresting me? Are you going to read me my rights?" PO Tilman did not answer her.

PO Rosario placed § 87(2)(b) inside of the police van. § 87(2)(b) asked one of the other cookout guests to call her mother, as she had her two sons there at the park. They called her mother and PO Tilman wished to speak with her mother. § 87(2)(b) did not want him to do so and told the cookout guests this.

While § 87(2)(b) was in the van, she asked PO Rosario what the arrest was for and PO Rosario replied, "It's for being disrespectful." PO Rosario then asked if she had any identification on her. She explained that it was not on her person, but with her things by the cookout. The officers never retrieved her identification and never asked how her children would be cared for if she was arrested. When § 87(2)(b) asked PO Rosario why they were doing this when she had no criminal record and had not done anything illegal, PO Rosario stated that he would go along with whatever his partner did.

While sitting in the van, § 87(2)(b) saw one marked and one unmarked vehicle pull up on the grass. She could not describe the officers.

At the station house, § 87(2)(b) was issued two summonses, one for § 87(2)(b) and one for § 87(2)(b). She was searched at the station house and spent a half hour in a cell before being issued the two summonses and leaving with her mother. Before leaving, § 87(2)(b) told the desk sergeant, later identified as Sgt. Christopher Martin, that she wished to file a complaint. He wished to know on what charges and she answered, "assault," not knowing what else to call it. She asked how she would go about filing the complaint. He said, "You don't do that here." He never told her about CCRB or gave her a complaint form. He indicated that she would deal with it when she deals with the summons.

When she had first faced the desk sergeant, he pointed out a scratch on PO Tilman's neck and stated that he should take a photo of it. When asked how PO Tilman could have sustained a scratch on his neck, § 87(2)(b) did not know.

§ 87(2)(b) was unsure if anyone had been drinking at the cookout because she came late, but stated that no one was noticeably drunk and she had not been drinking.

## Results of Investigation

### **Witnesses**

§ 87(2)(b) provided three witnesses who had been at the cookout. Contact was established with § 87(2)(b) who did not want to come to the CCRB and did not want the undersigned investigator to visit her home. She agreed to an interview over the phone.

Contact was also made with § 87(2)(b) who consistently put off making an appointment and never returned phone calls. An appointment was finally set up in Harlem and the undersigned investigator traveled to the location. § 87(2)(b) failed to appear and did not return subsequent phone messages or letters.

§ 87(2)(b)'s mother was also contacted as a witness to events in the station house. She provided a statement at the CCRB on July 26, 2002.

### Witness: § 87(2)(b)

§ 87(2)(b) age § 87(2)(b), was interviewed over the phone on June 18, 2002 at 6:30PM (Enc. 9a-b). On April 17, 2002 at approximately 8:25PM, § 87(2)(b) was at Morningside Park having a barbecue, thrown by her mother, § 87(2)(b). § 87(2)(b) stated that they had cookouts in the park often and did not know that they were prohibited.

A police van was driving through the park and stopped near their cookout. § 87(2)(b) was in the vicinity of the grill, but § 87(2)(b) and § 87(2)(b) were the only women directly at the grill.

§ 87(2)(b)'s cousin, § 87(2)(b) was the first person to speak with the officers. § 87(2)(b) followed to see what was going on. The officers told the women that they could not barbecue in the park. PO Tilman asked for identification, but none of the women had any on them. § 87(2)(b) told PO Tilman that they were finished cooking. She stated that PO Tilman seemed to have an attitude at this point.

§ 87(2)(b)'s friend, § 87(2)(b) then joined them. She explained that she had identification, but it was in her bag, which was close by. § 87(2)(b) did ask why she needed to provide this identification. PO Tilman asked who § 87(2)(b) was and § 87(2)(b) explained that she was a guest at the cookout. § 87(2)(b) recalled that PO Tilman did not seem to like § 87(2)(b)'s tone. He asked her to leave the area where the officers and § 87(2)(b) were speaking and she complied.

PO Tilman then asked for § 87(2)(b)'s name. § 87(2)(b) protested that her name did not matter, as § 87(2)(b) was only a guest at the barbecue. PO Tilman told § 87(2)(b) that he could hand out five or six tickets for the open flame, "just because of her attitude," referring to § 87(2)(b).

§ 87(2)(b) returned to the conversation approximately fifteen minutes later. PO Tilman asked her for her age and § 87(2)(b) asked him for his age. PO Tilman then grabbed § 87(2)(b). He did not warn her that he was going to arrest her if she did not change her tone. He did not warn her before he touched her. § 87(2)(b) got very upset when PO Tilman grabbed her and she struggled. § 87(2)(b) protested that she had her sons there in the park, who were present during this struggle.

After § 87(2)(b) and PO Tilman struggled for a short period, PO Tilman's partner helped and § 87(2)(b) was handcuffed. She was placed into her van. Shortly thereafter, one unmarked and two marked police vehicles responded. The officers never allowed § 87(2)(b) to get her identification out of her bag.

The crowd did not become involved in the struggle. There was no cursing or discourteous language between § 87(2)(b) and the officers. § 87(2)(b) recalled that § 87(2)(b) had to go to the emergency room for her wrist and hand. § 87(2)(b) later told § 87(2)(b) that she had asked to file a complaint with the desk sergeant, but he would not help her. He did not give her the information as to where she could file the complaint.

Witness: § 87(2)(b)

§ 87(2)(b) aged § 87(2)(b) was interviewed at the CCRB on July 26, 2002 (Enc. 10a-c). On April 17, 2002, § 87(2)(b) received a phone call stating that her daughter, § 87(2)(b) had been arrested and was at the 26<sup>th</sup> Precinct station house. She hurried down and spoke with PO Rosario, who explained to her what had happened and told her that the officers had to make the arrest to “save face.” He told her that her daughter had been very rude to them. Their conversation lasted approximately ten minutes.

§ 87(2)(b) did not believe this sounded like her daughter, but kept her mouth shut and was told to wait because her daughter, who was down in the holding cells, would be up soon. When § 87(2)(b) was brought upstairs, her mother greeted her in front of the desk. PO Tilman and PO Rosario were also present.

§ 87(2)(b) then asked the desk sergeant, whom § 87(2)(b) identified as a White male in his late thirties with a full head of black hair and whom the other officers addressed as “sergeant,” how she could go about filing some sort of complaint against PO Tilman for his treatment of her during the arrest. This officer, identified as Sgt. Martin, told § 87(2)(b) that she could do that later, but not there at that time. § 87(2)(b) believed that his message was, “not here, not now.” § 87(2)(b) pressed the point, but it was clear, in § 87(2)(b)'s opinion, that the officers wanted her out of the station house and told § 87(2)(b) to take her home.

§ 87(2)(b) also recalled an older White officer with a bald head being present behind and around the desk, assumed to be Lt. Merlotto. She was clear that it was not this officer who had denied § 87(2)(b)'s request to make a complaint.

#### Subject Officer: PO Daniel Tilman

PO Daniel Tilman was interviewed at the CCRB on June 5, 2002 (Enc. 11a-f). On April 17, 2002, PO Tilman worked a 3PM to 11:35PM shift as a community patrol unit with PO Wilfredo Rosario. They were in uniform, assigned to marked RMP 5319.

PO Tilman's memobook stated that he issued a summons to § 87(2)(b) for § 87(2)(b) in Morningside Park, as she was observed operating an open flame, and for § 87(2)(b) § 87(2)(b) § 87(2)(b)

PO Tilman stated that he was driving with his partner, PO Rosario, in Morningside Park next to the playground. They parked the van approximately fifteen or twenty feet away and called three or four adult females (including § 87(2)(b) who were standing directly around a fire over to the van. The women complied and the officers informed them that it was a violation to have a fire in the park without a permit. PO Tilman asked them for identification, but the women stated that they did not have any identification on them. They were very apologetic regarding the fire and offered to put it out. PO Tilman stated that he had no problem with that, but still needed to see identification.

At that point, § 87(2)(b) started “screaming and yelling, ‘I don’t have to give you shit.’” PO Tilman asked her to calm down, informing her that it was not a big deal, but that he just needed to see identification. § 87(2)(b) began “making a scene.” When asked at a later point in the interview what § 87(2)(b)'s first words to him had been, PO Tilman did not recall. He did not recall if she was responding to anything he said and could not think of any reason, beyond § 87(2)(b) being offended that he had asked for identification, for why she became loud. He could also give no more specifics regarding what she had said, exactly, to him or to the crowd.

PO Tilman stated that she was “cursing and yelling,” but could not recall specifically what she cursed or yelled. He stated that he never asked her, to the best of his recollection, for anything beyond her identification. He did not recall § 87(2)(b) stating anything about not seeing signs or any such conversation regarding signs in Central Park. He did recall telling her to calm down and may have mentioned something about needing to calm her down to another individual at the scene. PO Tilman stated that § 87(2)(b) left the scene directly after this comment.

PO Tilman stated that he tried to ignore § 87(2)(b) giving his attention to the other individuals at the cookout and get information from them. PO Tilman did not see § 87(2)(b) drinking, but thought she might have been because she was the only “irrational” one out of the other people.

When § 87(2)(b) returned, still “making a scene” and “yelling and screaming,” PO Tilman was still trying to obtain identification from the other women, one of whom stated that she worked for the city. PO Tilman could not recall what § 87(2)(b) stated when she first returned to the scene, but thought that they might have been remarks such as, “This is bullshit.”

PO Tilman could not recall what he said, but stated that he did say something about giving the women a summons if they could not produce identification. PO Tilman could not recall if he made any mention of § 87(2)(b) behavior in connection to any discussion of summonses. PO Tilman again asked for § 87(2)(b) s identification and § 87(2)(b) again stated, “No, I don’t have any identification and I don’t have to give you shit.” PO Tilman noted that those were her exact words. When asked if § 87(2)(b) ever told PO Tilman that her identification was somewhere else with her other belongings in the park, PO Tilman stated that she did not. When asked if he had ever asked § 87(2)(b) how old she is while in the park, PO Tilman stated that he did not, but did ask her age later in the station house. When asked if there was any reason why he asked § 87(2)(b) again for identification when she returned the second time, PO Tilman stated, “because of her attitude.” It was when she did not calm down after repeated requests that PO Tilman decided that § 87(2)(b) would be arrested.

§ 87(2)(b) began walking away from PO Tilman. He told her, “Ma’am, you can’t walk away. Stay here.” She continued walking away, so PO Tilman walked after her and grabbed her arm. He stated, “Ma’am, if you continue this behavior, I’m going to have to put you under arrest.” She replied, “You have to do what you have to do.” PO Tilman then took out his handcuffs and handcuffed one of her wrists. She began waving her arms around to avoid having the other wrist handcuffed. The bystanders were within ten feet of this scuffle, but did not interfere or say anything.

A crowd of approximately ten people had gathered, so PO Rosario called for additional units and then helped PO Tilman complete handcuffing § 87(2)(b). They placed her into the van and she continued “yelling and screaming.” PO Tilman went back and explained to the “family” what the officers were doing. PO Tilman stated that § 87(2)(b) s behavior was the reason why she was in handcuffs and he believed that the other adults understood and were very nice. Additional units then arrived (two marked cars and one unmarked), but § 87(2)(b) was already in the van and the situation was under control and no officers exited their cars. PO Tilman believed that the crime sergeant responded, but had not recollection of who else responded. He stated that PO Gazzano and PO Signoretti might have been there.

PO Tilman stated that § 87(2)(b) never got into his personal space during the incident. When asked if he knew that § 87(2)(b) had two young sons with her at the park, PO Tilman answered in the affirmative and stated that he believed that they would be left with § 87(2)(b) relatives at the cookout. When asked directly if he had ever established whether or not the other adults were family, PO Tilman stated that he was not sure if someone had told him, but “knew” that she had relatives present at the park.

PO Tilman was then specifically asked by his representative if he had not learned of her sons until after leaving the park. He then stated that he did not recall if he had been told earlier at

the park by someone else, but stated that § 87(2)(b) did not tell him about her sons until they were in transit back to the station house. When asked if he would then have to go back to the park to make sure that the children had someone to care for them, PO Tilman stated that he did not do this and did not think that would be procedure.

When they got back to the station house, PO Rosario pointed out a long scratch on his neck from the struggle with § 87(2)(b) to handcuff her. He did not file a formal report, but took a photograph, which he supplied during this interview.

§ 87(2)(b)'s mother arrived and she was released with the two summonses.

PO Tilman asked to state the following: He stated that he just needed to see identification. He had not originally intended on issuing a summons and pointed out that he was born and raised in the city and knows that people have cookouts in the park, but clarified that he would never get loud with the police. He pointed out that he and PO Rosario had explained that there were no barbecues allowed and the issuing of the summons was at their discretion.

PO Tilman stated that the choice of who to issue the summons to for the fire without permit is up to him and would not have to be issued to the owner of the barbecue or the person who was in charge of the barbecue. PO Tilman stated that § 87(2)(b) had told him that she was not the person who was in charge of the cookout.

Sgt. Martin was the desk sergeant when § 87(2)(b) was released. PO Tilman recalled § 87(2)(b) asking to file a complaint against PO Tilman for assault and stated that Sgt. Martin had told her, "You can do that at a later date." PO Tilman could not recall Sgt. Martin explaining why she could not file a complaint right then and there.

PO Tilman recalled § 87(2)(b) complaining of pain in her arm after the arrest, but explained that she had struggled while he attempted to handcuff her.

#### Subject Officer: Sgt. Christopher Martin

Sgt. Christopher Martin was interviewed at the CCRB on July 8, 2002 (Enc. 12a-d). On April 17, 2002, Sgt. Martin worked a 2:40PM to 11:47PM shift alone as the desk sergeant in the 26<sup>th</sup> Precinct station house. He was in uniform.

Sgt. Martin recalled § 87(2)(b) being brought in for operating an open flame, but could not recall any other charges against her. He stated that he had no words with § 87(2)(b) who spoke instead with Lt. Merlotto while she stood in front of the desk. Sgt. Martin explained that he was busy filling out some paper work related to § 87(2)(b)'s arrest and that she asked Lt. Merlotto about filing a complaint. Sgt. Martin stated that Lt. Merlotto fully explained the procedure and told § 87(2)(b) that she could file a complaint at any command, now or later. Sgt. Martin could not recall why § 87(2)(b) did not fill out a complaint at that time. He was also unsure if this encounter had occurred while § 87(2)(b) was entering or exiting the precinct. Sgt. Martin did not recall § 87(2)(b)'s mother being present.

Sgt. Martin described Lt. Merlotto as a White male, balding, in uniform. He is the ICO for the 26<sup>th</sup> Precinct.

#### Witness Officer: PO Wilfredo Rosario

PO Wilfredo Rosario was interviewed at the CCRB on July 12, 2002 (Enc. 13a-d). On April 17, 2002, PO Rosario worked a 4PM to midnight shift with PO Tilman, assigned to community patrol in van #5319, wearing a uniform.

At approximately 8:25PM, PO Rosario and PO Tilman noticed approximately three women standing around a barbecue's open flame; § 87(2)(b) was included in this group. The officers approached and explained to the women that this was not allowed in the park and they needed to see some identification. The women stated that they did not know about the park rule and were apologetic. PO Rosario believed that he spoke with a § 87(2)(b). One of the women went to retrieve her identification, which she then showed to PO Tilman.

The officers decided to give only a verbal warning. At this point, § 87(2)(b) approached the officers and was “very upset and confrontational.” PO Rosario did not know why § 87(2)(b) approached at this point. She stated that she did not understand and was very loud, telling the officers that they “didn’t have anything else to do.” The officers explained to her that the situation was already resolved and there was no need to add anything further. § 87(2)(b) was still loud and confrontational. PO Tilman repeatedly asked her to lower her voice and to calm down. PO Rosario stated that several of the other women present were also asking § 87(2)(b) to calm down.

PO Rosario at first stated that § 87(2)(b) approached only once. When he was told that § 87(2)(b) had allegedly had an initial conversation, left the scene, and returned, PO Rosario recalled that she walked away and returned on her own volition, for reasons unknown to him.

§ 87(2)(b) was asked for identification, but, to the best of PO Rosario’s recollections, never produced any. PO Rosario could not recall if § 87(2)(b) told the officers that her identification was located elsewhere, specifically in her bag.

After § 87(2)(b) left the first time, PO Rosario recalled that the other women were apologizing for her. They made it clear to him that § 87(2)(b) was a guest and that it was not her cookout. PO Rosario stated, “It wasn’t her flame.”

When § 87(2)(b) returned, she spoke mainly with PO Tilman. PO Rosario was busy speaking with the other women and does not recall what was said between PO Tilman and § 87(2)(b). He could not recall hearing any reference to § 87(2)(b)’s attitude and the issuance of summonses. PO Rosario gave § 87(2)(b) his attention when she became very loud. At this time, PO Tilman warned § 87(2)(b) that she would be arrested if she did not quiet down and calm down. He then moved to place her under arrest and she pulled away from him.

PO Tilman effected the arrest by telling § 87(2)(b) to put her arms behind her back. She failed to comply and was “flailing her arms.” § 87(2)(b) was yelling, “I can’t believe this,” and asking what she was being arrested for. PO Tilman had to struggle with § 87(2)(b) to get her arms behind her back. PO Rosario assisted. PO Rosario called for back-up during the struggle. Officers arrived approximately five minutes later: PO Signoretti and Gazzano. By the time they arrived, § 87(2)(b) had been placed in the van. PO Tilman received a scratch to his neck during this struggle.

PO Rosario stated that he knew that there were children in the park, but did not know that § 87(2)(b) had sons there. She stated to him, “Look what you’re doing in front of the kids,” but, to the best of PO Rosario’s recollection, she never specified that the children were hers. PO Rosario stated that, if he had been made aware that she had children at the park, he would ensure the safety of the children and make notification to relatives to come pick the children up.

PO Rosario stated that § 87(2)(b) was “upset” when being transported in the van back to the station house, but he could not recall anything she said specifically. Back at the station house, PO Rosario had no further interaction with § 87(2)(b). He attended to the scratch for his partner, taking a photograph. He could not recall who was at the desk. He could not recall witnessing any conversation regarding § 87(2)(b)’s wish to file a complaint against PO Tilman.

When asked if there was a reason why § 87(2)(b) had been written the summons for the open flame or if the officers could have issued the summons to any people present, PO Rosario answered, “I make it a habit, if someone is violating the law, to issue that person a summons....Initially, § 87(2)(b) was not being cooperative, so it was hard to tell if it was her flame, so...you know?”

PO Rosario stated that the other women present were sympathetic towards the officers and did not think that § 87(2)(b) “had to take it there.”

Witness Officers: PO Vincent Signoretti and PO Richard Gazzano

PO Vincent Signoretti and PO Richard Gazzano were interviewed at the CCRB on July 12, 2002 (Encs. 14a-g, 15a-d). On April 17, 2002, PO Signoretti and PO Gazzano worked a 3PM



to 11:35PM shift assigned to Sector C/D in the 26<sup>th</sup> Precinct, in uniform, and in a marked RMP 1298.

At 8:04PM, as the officers were just coming off meal, they responded to a call for back-up from PO Rosario and PO Tilman at Morningside Park. By the time they arrived, § 87(2)(b) had been apprehended and placed in the van. PO Signoretti asked if any more help was needed, which it was not. PO Rosario and PO Tilman did not give the officers any information regarding the arrest and both officers did not recall having interaction with any other civilians at the scene. Both officers could not recall PO Tilman having any injuries and had no further contact with § 87(2)(b).

The officers left the scene at 8:10PM.

#### Witness Officer: Lt. Raymond Merlotto

Lt. Raymond Merlotto was interviewed at the CCRB on July 25, 2002 (Enc. 16a-d). On April 17, 2002, Lt. Merlotto worked a 2:45PM to 11:20PM shift as the platoon commander at the 26<sup>th</sup> Precinct station house. He was in uniform and working solo.

At 7:25PM, Lt. Merlotto relieved Sgt. Martin as the desk officer. He was present when § 87(2)(b) was brought into the station house and recalled that she was irate about being arrested. He also recalled that PO Tilman had been scratched by § 87(2)(b) and the officers had a discussion regarding whether or not to charge her with assault. PO Tilman felt that the scratch had been a result of the struggle and not an intentional injury and thus declined the assault charge.

Lt. Merlotto was made to understand that § 87(2)(b) had been in charge of the cookout and he thus instructed PO Tilman to issue her a summons for § 87(2)(b) and for § 87(2)(b). When asked if it must be established whether or not someone was fully in charge of the cookout and barbecue flame in order to be issued such a summons, Lt. Merlotto was unclear and unsure.

Lt. Merlotto recalled that § 87(2)(b)'s mother had arrived at the station house and was very apologetic regarding her daughter's behavior. Lt. Merlotto asked her to wait in the complaint room where either PO Rosario or PO Tilman explained the situation to her.

§ 87(2)(b) was released approximately forty-five minutes after arriving at the station house. Lt. Merlotto stated that Sgt. Martin returned to the desk at this time and was the one who signed § 87(2)(b) out. Lt. Merlotto was also at the desk, but had no recollection of § 87(2)(b) complaining about PO Tilman's behavior, about wanting to file assault charges against him, or about wanting to file any type of complaint. He stated that, had she made such a request, he would have fully explained to her that she could file the complaint at any command or the CCRB directly and would have made her fully aware of the process. When told that Sgt. Martin had indicated that he overheard a conversation regarding filing a civilian complaint between Lt. Merlotto and § 87(2)(b), Lt. Merlotto still did not recall any such conversation. Lt. Merlotto stated that there would be no reason why he would have asked § 87(2)(b) to not file such a complaint at that time in the station house.

#### **Documents**

The police communications confirm that PO Rosario called for backup during the struggle between PO Tilman and § 87(2)(b) as a woman can be heard shouting in the background. Sector C responds and "no further" is called as soon as the arrest is reported, § 87(2)(g) (Enc. 18a-d).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)



§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation A) Force: PO Daniel Tilman used physical force against § 87(2)(b)**

§ 87(2)(b) admits that she struggled with PO Tilman, confirmed by all other statements. § 87(2)(b) alleges that PO Tilman lunged at her without warning her or stating that she was being arrested, § 87(2)(g)

§ 87(2)(g)

New York Penal Law 35.27 states that “a person may not use physical force to resist an arrest, whether authorized or unauthorized, which is being effected or attempted by a police officer or peace officer when it would reasonably appear that the latter is a police officer or peace officer.” (Enc. 1)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that Allegation A be exonerated.

**Allegation B) Abuse of Authority: Sgt. Christopher Martin did not process § 87(2)(b)'s complaint regarding an officer.**

§ 87(2)(b) alleged that the desk sergeant told her she could not file that complaint then and there. Sgt. Martin denied that it was he, stating that he had witnessed Lt. Merlotto inform § 87(2)(b) of the entire process of filing such a complaint. He had no idea why she did not then file the complaint, as one would have expected her to do.

§ 87(2)(b)'s mother, confirmed § 87(2)(b)'s allegation and the fact that it was the sergeant and not Lt. Merlotto who refused the complaint. PO Tilman also named Sgt. Martin by name and stated that he had heard Sgt. Martin make the alleged denial to § 87(2)(b)

§ 87(2)(g)

It is recommended that Allegation B be substantiated.

**Allegation C) Other Misconduct: Sgt. Christopher Martin intentionally made a false official statement.**

Sgt. Martin clearly stated in his interview that he had witnessed Lt. Merlotto respond to § 87(2)(b)'s request to file a complaint against PO Tilman with a full explanation of the civilian complaint process. Lt. Merlotto had no recollection of such a conversation between himself and

§ 87(2)(b)

§ 87(2)(g)

By indicating that Lt. Merlotto had given all appropriate information to § 87(2)(b) and by denying that he had any part in such a conversation, Sgt. Martin intentionally made a false official statement to the CCRB. Police Procedure 203-08 clearly qualifies “making a false official statement” as “prohibited conduct.” (Enc. 2)

It is recommended that Allegation C be noted as other misconduct.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: